Hiring and Buying Loyalty: How Party Leaders Control the House Committee on Rules*

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April 13, 2026

1 Introduction

The internal organization of the House of Representatives has changed drastically over the past several decades. In contrast to the 'textbook Congress' where the center of power was in committees, power has shifted towards party leaders, producing a more centralized distribution of power. These shifts can be attributed in part to the Legislative Reorganization Act of 1970 and subsequent changes to chamber, committee, and party rules within the 1970's[1], though the shift continued long after the 1970's with key events such as the Republican Revolution of 1994 further centralizing power in the hands of party leadership.

A key institution that supports this centralized power distribution is the House Committee on Rules.[2] The committee, often referred to as the 'traffic cop of Congress', uses its agenda-setting power to structure the legislative agenda to the preferences of the majority party leadership.[3] This is in stark contrast to its role as the power base of the

*Special thanks to Maya Rezak, Morgan Ames and Marisol Perez-Jarquin for their invaluable research assistance on this project, Michael S. Lynch for his helpful feedback, SPSA 2024 and MPSA 2025 attendees for their helpful feedback, as well as Prudentis Funds for their invaluable support.

[1]Some of these changes include the selection of committee chairs through caucus votes instead of strict seniority, allowing legislation to be referred to multiple committees, among others.

[2]Hereafter referred to as the Rules Committee or the House Rules Committee.

[3]The committee explicitly acknowledges its role: in the 2023 GOP conference rules, the Rules Committee is referred to as 'the scheduling arm of the majority party' (*Conference Rules of the 118th Congress* 2023).

cross-party conservative coalition in the House before the 1970's (Schickler and Pearson 2009), where it used its agenda-setting power to stall major liberal initiatives such as civil rights legislation. This shift, from representing a cross-party ideological majority in the chamber to representing the interests of the majority party, sprouted from a change in the selection method of Rules Committee members in the House Democratic Caucus rules—members were henceforth nominated by the Speaker and subject to a caucus vote (Schickler 2001).

The Rules Committee has been perceived as less prestigious and powerful by academics and media since these institutional changes in the 1970's, with most agreeing that the committee is an agent of majority party leadership. The committee has seen a decline in the mean tenure of its members and an increase in members transferring off the committee in favor of better committee assignments, further underlining its perceived decline in prestige (Stewart III 2018). On top of that, the committee lacks the traditional opportunities for policy development and pork-barrel spending that other committees have due to the committee rarely considering its own original jurisdiction legislation.

However, the importance of the committee to the legislative agenda has only increased over the past few decades as centralization of power in the chamber to party leaders has increased. Special rules allow for a great deal of flexibility in the development of legislation, making it easier for leaders to create and preserve delicate compromises in increasingly complicated bills and in an increasingly polarized legislature (Curry and Frances E Lee 2020, Bussing and Lerner 2022). This flexibility is key for the centralization of the legislative process that benefits party leadership, and the only institution that can provide this flexibility is the Rules Committee. The Rules Committee controlling the special rules process also gives it significant negative agenda control over legislation, allowing for party leaders to utilize a loyal Rules Committee to establish a legislative party cartel to the benefit of the median of the majority party (Cox and McCubbins 1993).

If the Rules Committee undergirds the current distribution of power in the House that benefits party leaders and the median of the majority party, yet does not provide much in the way of policy or distributive benefits to its members, how do party leaders

ensure that the committee stays loyal to the interests of the party and party leadership? I examine two types of mechanisms that party leaders can utilize to ensure the loyalty of committee members: ex-ante selection of loyalists and ex-post distribution of individualized benefits, such as committee assignments and access to the legislative agenda. I posit that appointing party loyalists is a necessary condition for the loyalty of the Rules Committee and that party leaders will increasingly distribute individualized benefits to Rules Committee members to complement the appointment of loyalists as the importance of the committee to the continued functioning of the House increases.

I investigate this question by examining committee assignments and legislation considered under special rules. I find that party leaders disproportionately appoint loyalist members to the Rules Committee, particularly those that are close to the ideological ideal points of the party median and their party leader. This filters out potentially disloyal members who may attempt to hold up the business of the committee to their benefit.

I also assess over-time changes in the distribution of individualized benefits to Rules Committee members. I find a significant over-time increase in Rules Committee members being compensated with prestigious committee assignments, such as Appropriations and Ways and Means, following their first term on Rules. I also examine whether Rules Committee members are more likely to have their sponsored and co-sponsored legislation considered via the special rules process, which is in their domain. I find a significant over-time increase in the effect of being on Rules on special rules access, going from a negative effect in the 1970's to a null effect in the 2010's. This implies that party leaders have had to provide further concessions to Rules Committee members over time to keep them loyal, likely due to the increased reliance on unorthodox bill development and management by party leaders enabled by special rules for the shepherding of controversial legislation.

The results demonstrate the limits of ex-ante selection as a tool for ensuring the loyalty of the Rules Committee. As the committee becomes more indispensable to the functioning of the majority party cartel, party leaders complement the selection of loyalists with the distribution of individualized benefits to keep the committee in line. They also highlight a broader fragility of the majority party cartel stemming from the increased

centralization of power in the hands of party leadership: to continue buying off members' support for the increased centralization of power in the House, party leaders have to increasingly rely on the distribution of individualized benefits such as campaign contributions (Jenkins and Monroe 2012) and access to the legislative agenda (Michael S. Lynch, Madonna, and Roberts 2016). By centralizing policy powers in their own hands and staking their credibility on their ability to distribute these scarce resources to members, they tie their hands and reduce their ability to credibly blame-shift if something goes wrong, giving rank-and-file members a small set of actors to credibly point blame to and mobilize against if their needs are not met.

2 The House Rules Committee in the Modern House of Representatives

The 21st century House of Representatives is built upon the foundations of the House Rules Committee. The Rules Committee, through its jurisdiction over special rules, enables the enactment of majority party negative agenda control and the centralization of policymaking power in the hands of majority party leadership. Without the Rules Committee, it would be much more difficult for key actors in the House to broker deals and pass legislation in an increasingly partisan and divided legislature. Importantly, I also posit that the Rules Committee's importance has grown as unorthodox development and management of legislation, enabled by creative usage of special rules, has increased.

Despite its continued and increasing importance to House policymaking, members of Congress and scholars alike have viewed the Rules Committee as having declined in prestige over time, likely due to the committee's lack of opportunities to create legislation and direct spending that other committees have and its integration into the party leadership apparatus. In this section, I outline in more detail the increasing importance of the Rules Committee to policymaking in the House of Representatives and how this contrasts with the committee's decline in prestige over the years.

2.1 Agenda Control, Centralization, and the Rules Committee

To whose benefit is the organization of the House of Representatives? This question has driven much of the theoretical and empirical developments in Congressional research over the past several decades. Scholars have sorted themselves into three broad camps—Distributive theory, which posits that the House is organized to institutionalize vote trades and benefit members with specific policy interests (Weingast and W. J. Marshall 1988), informational theory, which posits that the House is organized to promote specialization and expertise development among members and benefit the chamber as a whole (Gilligan and Krehbiel 1987, Gilligan and Krehbiel 1989, Krehbiel 1992, Krehbiel 1997), and partisan theory, which posits that legislative procedures are 'hijacked' by the majority party to distribute disproportionate benefits to members of the majority party to the exclusion of the minority party, forming a 'majority party cartel' (Cox and McCubbins 1993, Cox and McCubbins 2005).

A commonality between these three theories is that negative agenda control is necessary to protect the contents of legislation from the preferences of the chamber as a whole, thus preserving the interests of whichever smaller subset of members disproportionately benefit from legislation. Median voter theorem dictates that, without any restrictions on amendments on legislation, a bill being considered by the House of Representatives will converge upon the ideal point of the median member of the chamber. Likewise, without any control over which bills get considered by the floor of the House, the universe of potential status quo policies will also converge upon the ideal point of the median member of the chamber. This complete lack of agenda control renders it impossible to disproportionately distribute benefits to certain members or protect the development of policy expertise by members on committees.

The House Rules Committee is a key actor in the imposition of this agenda control, primarily through its exclusive jurisdiction over the drafting of special rules. Special rules are house resolutions drafted by the House Rules Committee and passed by the entire chamber that are used to control the legislative agenda. These special rules serve a few important purposes: first, they fast-track legislation to the floor, and second, they

set the terms of consideration for legislation on the floor. Special rules can completely disallow amendment on legislation (constituting a 'closed rule'), thus protecting legislation drafted in the interests of a certain subset of members from converging to the interests of the floor (Megan S. Lynch 2010). Scholars have found evidence that the usage of special rules, particularly special rules that restrict amendments and other types of legislative activity when being considered on the floor, can move the ideal point of legislation in favor of the median of the majority party through the imposition of a 'take-it-or-leave-it' deal where the floor must choose between a non-median status quo and a non-median proposed alternative (B. W. Marshall 2002, Monroe and Robinson 2008).

Though the Rules Committee's negative agenda control is far from complete, as bills have other pathways to consideration such as through the discharge petition or suspension of the rules (Bussing 2021), most of the major bills considered by Congress are considered through special rules, particularly those that cannot reach the 2/3rds vote threshold mandated by suspension of the rules[4]. This is because special rules are not subject to the same super-majoritarian voting requirements that bills considered under suspension of the rules or unanimous consent are. This gives the Rules Committee a greater degree of influence over the legislative process than would be implied by the raw count of bills considered by special rules. As majority party margins in the House decrease and ideological polarization of its members increases, crafting bipartisan coalitions on legislation becomes increasingly difficult, therefore making the simple majoritarian voting requirements of special rules increasingly valuable over time.

The flexibility granted by the Rules Committee's usage of special rules has enabled the increased centralization of policymaking power in the hands of party leaders. As partisanship has increased and House majorities have gotten smaller, the House has become increasingly paralyzed with legislative gridlock. To get around this gridlock, party leaders have found it increasingly necessary to bypass the traditional 'regular order' of legislative development in order to get legislation through the chamber (Curry 2015, Curry and Frances E Lee 2020). So-called 'unorthodox development' of legislation can constitute a

[4]See Appendix A for descriptive statistics on the pathways that House bills take in the legislative process.

number of features that indicate that the regular legislative process was, in some way, disrupted, such as bills being considered through a closed rule, bills not receiving any committee hearings, bills bypassing committee consideration entirely, and bills receiving late-stage adjustments through self-executing special rules, among others (Sinclair 2017). One common feature of many of these unorthodox development methods is that they reduce the amount of time that legislators, interest groups, and members of the public have to read a bill, thus reducing the likelihood that mobilization against a bill occurs. Some of these unorthodox development methods, particularly closed rule consideration of legislation, also reduce the number of people involved in the writing of bills before final passage. This oftentimes leads to rank-and-file members of the House being left in the dark about legislation, having to take votes on legislation with only a limited understanding of what is contained within. This gives party leaders and other key policymakers, such as committee chairs, a great deal of influence in the legislative process through their control of legislative information.

Many observers have noted that the increased centralization of power in party leadership has come at the expense of the power of committees. Representative Dina Titus (D-NV) stated that committee chairs are mere 'rubber stamps' for party leaders and that many bills are written directly by party leaders, and Representative Joe Barrow (D-GA) posits that changing the 'powerful' Rules Committee, specifically by allowing more open rules on bills, would be a good place to start in challenging the centralization of power in the chamber (Crespin and Madonna 2016).

In summary, the Rules Committee is key in enabling the centralized distribution of power in the House of Representatives due to their exclusive jurisdiction of special rules, a flexible tool for navigating legislation through the legislative process. Importantly, the use of special rules for the unorthodox management of legislation has only increased over the past few decades (Curry and Frances E Lee 2020), even after the committee was reasserted as an arm of the majority party leadership in the 1960's and 1970's. Likewise, decreasing majority party margins in the House (Frances E. Lee 2016) and increasing ideological polarization have made bipartisan agreements on legislation more difficult,

making the 50%+1 voting requirement of special rules more valuable to policymakers over time. Therefore, the Rules Committee is not only a powerful tool for the controlling of the legislative agenda by majority party leadership, the Rules Committee's importance to party leaders has been increasing over time.

Despite the increasing importance of the Rules Committee to the majority party cartel and the centralization of power in the hands of party leadership, the committee has declined in its perceived prestige, with an increase in exclusivity violations and a decline in mean committee seniority over time (Stewart III 2018). In the next section, I describe the institutional evolution of the House Rules Committee, from independent agent of the conservative bloc from the 1930's to the 1970's to arm of the majority party leadership of the present day, and show the empirical manifestations of the decline in prestige of the committee stemming from its institutional evolution.

2.2 Rules: Prestigious No More?

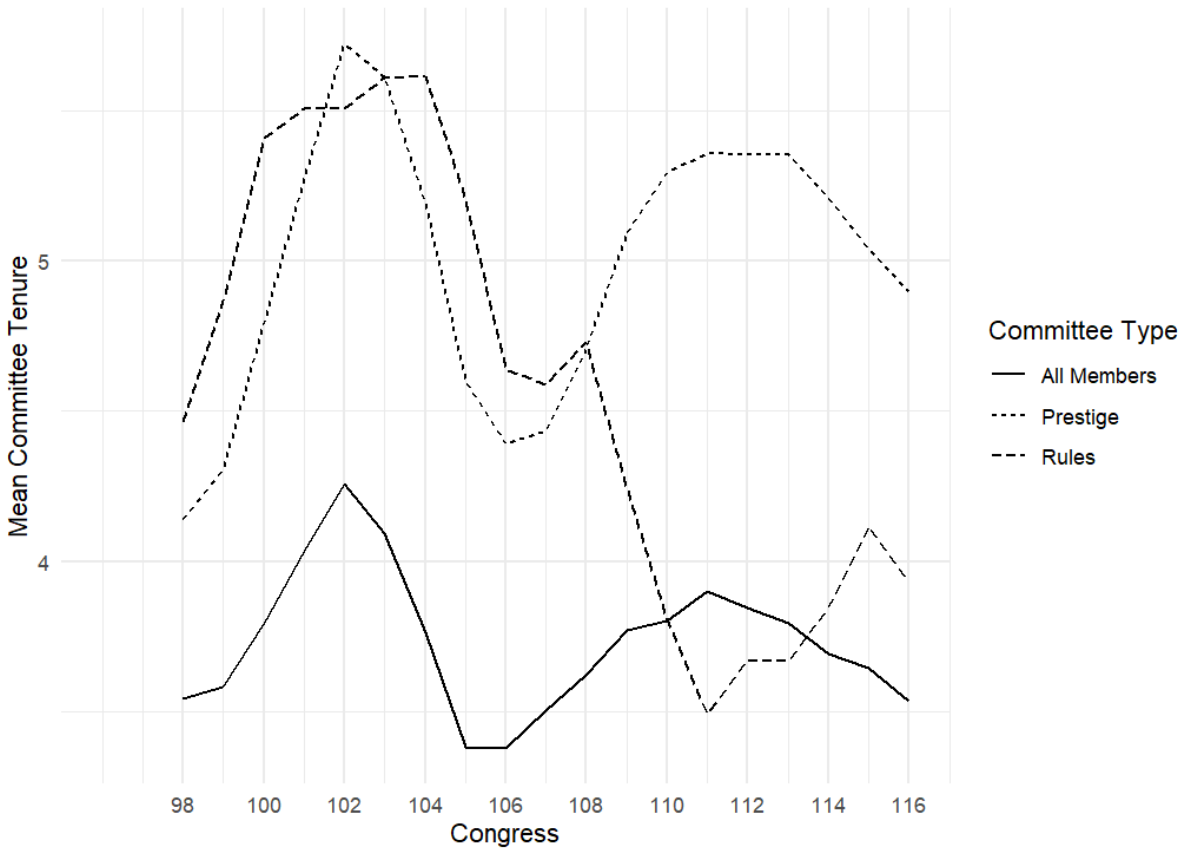
The Rules Committee was one of the most prestigious committee assignments in the era of the 'Textbook Congress'. This is reflected in the low rates of transfer off of the committee at the time and the rules restricting members on the Rules Committee from serving on another committee. The main reason the committee was so prestigious is that the Rules Committee was an independent power base at the time, starting from the 1930's when conservative Democrats began to ally themselves with the Republicans on the committee in defiance of Democratic party leadership (Schickler 2001). Before the reforms of the 1970's to the House Democratic Caucus rules which gave the Speaker and the minority leader the ability to appoint members onto the Rules Committee, there was no way for the Rules Committee to be held directly accountable to the interests of the majority party or party leadership because of the adherence to the norms of seniority for membership on the committee and the limited removal power that party leaders had for the Rules Committee. This resulted in the committee representing a cross-partisan conservative coalition from the late 1930's to the reforms of the 1970's, headed by arch-conservative chair Howard W. Smith (D-VA) from 1955-1967. Numerous liberal initiatives

were either killed or heavily modified by the committee, with some scholars positing that the Rules Committee actively promoted conservative priorities at the expense of Democratic leadership, using positive agenda control against the interests of their own party (Lapham 1954, Schickler and Pearson 2009).

The independence of the Rules Committee from majority party influence started to wither with the expansion of the Rules Committee in 1961 (Rubin 2025) and the brief return of the 21 Day Rule in 1965 (Dayton and Watney 2025), the latter of which would allow a reporting committee to put a bill on the Floor Calendar if the Rules Committee had not drafted a rule for the bill in 21 days. These measures were passed with the support of liberal Democrats, moderate members of both parties, and Democratic party leadership in the face of opposition from the Rules Committee itself and the cross-partisan conservative coalition that the Rules Committee represented. The final nail in the coffin, so to speak, was the change in the appointment method of Rules Committee Democratic members in 1974, with members now being appointed by the Speaker subject to a caucus ratification vote (Schickler 2001). With this change, party leaders were now able to credibly threaten disloyal Rules Committee members with expulsion from the committee, thus bringing an end to the independently powerful Rules Committee.

Today, the Rules Committee is seen as significantly less prestigious than it was in the past. Though the groundwork was set with changes to the appointment procedures for the committee in the 1970's, the decline in committee prestige, as measured by committee transfers and declining seniority, is observed most strongly in the period following the Republican Revolution of 1994 (Stewart III 2018). Some scholars have gone as far as to dub the committee a 'puppet' of majority party leadership (Curry and Gloekler 2009). Figure 1 illustrates the declining tenure of members on the Rules Committee—whereas prestigious committees such as Ways and Means, Appropriations and Energy and Commerce have retained relatively high member tenures over the past few decades, Rules has had a precipitous decline in the post-Republican Revolution era, with the mean tenure on the Rules Committee now about the same as an average committee member.

Figure 1: Average Committee Tenure of Representatives (98th-116th Congresses, 3 Year Moving Average)



One reason for the decline in prestige of the Rules Committee is that, absent its independent influence over special rules that it lost in the 1960's and 1970's, the committee does not have much in the way of benefits for its members. Curry and Gloekler find that being on Rules does not produce a statistically significant increase in appropriations for a members' district (2009). Likewise, the committee rarely considers legislation outside of special rules, giving members little opportunity to procure legislative or pork benefits from their position on the committee.

To empirically assess this lack of legislative benefits, I analyze a series of fixed effects regression models with least squares estimation in the following form:

$$Y\text{Legislative Effectiveness}_{xt} = \beta_1\text{Member Characteristics}_{xt} + \alpha_x + \alpha_t + \epsilon_{xt}$$

where x represents a member of Congress and t represents a Congress. The outcome measure is a member's Legislative Effectiveness score (Volden and Wiseman 2014) at

Congress t and the main predictor of interest is whether a member is on the Rules Committee or not. I also control for factors that would predict both membership on the Rules Committee and a member's legislative effectiveness score, including majority party status, prestige committee membership[5], and committee chair status. The results are presented below in Table 1 and the marginal effects of being on Rules on Legislative Effectiveness scores at different levels of majority party status are presented in Figure 2.

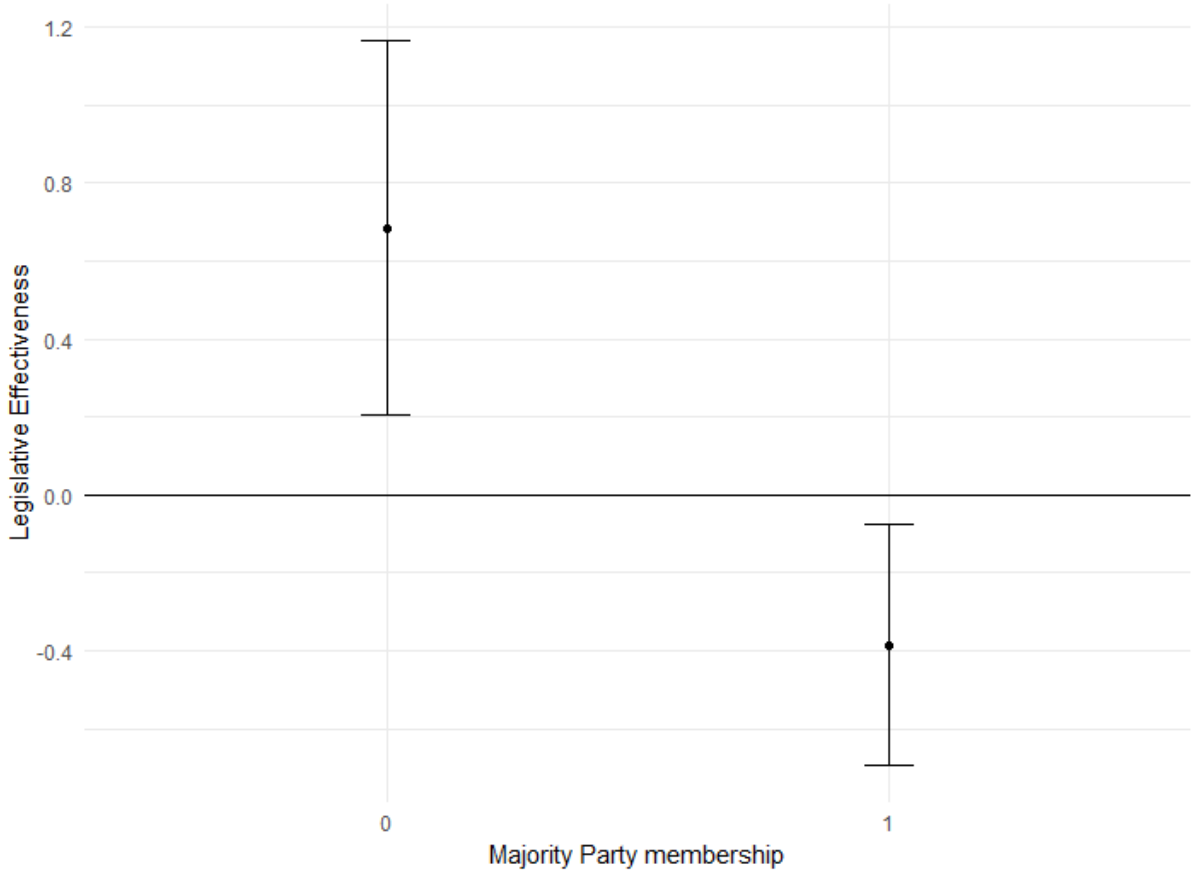
[5]Operationalized as Ways and Means, Appropriations, and Energy and Commerce.

Table 1: Effect of Rules Committee membership on Legislative Effectiveness (96th-116th Congresses)

	(1)	(2)	(3)
Rules	-0.643***	-0.342*	0.268*
	(0.101)	(0.153)	(0.129)
Majority Party	0.814***	0.899***	0.917***
	(0.034)	(0.048)	(0.049)
Rules x Majority Party			-0.775***
			(0.156)
Committee Chair	2.664***	2.468***	2.481***
	(0.214)	(0.220)	(0.219)
Chamber Seniority	0.081***	0.005	0.004
	(0.007)	(0.020)	(0.020)
On Multiple Committees	0.205**	0.066	0.069
	(0.054)	(0.047)	(0.048)
On Prestige Committee	-0.025	0.021	0.024
	(0.062)	(0.048)	(0.048)
Party Median Distance	-0.024	0.876	0.883
	(0.369)	(0.673)	(0.672)
Party Leader Distance	-0.217	0.142	0.135
	(0.339)	(0.526)	(0.527)
Observations	9195	9195	9195
R^2	0.372	0.618	0.619
Congress Fixed Effects	✓	✓	✓
Member Fixed Effects		✓	✓

Note: +p<0.1; *p<0.05; **p<0.01; ***p<0.001
Standard errors are clustered by member.

Figure 2: Marginal Effect of Rules Committee Membership on Legislative Effectiveness by Majority Party Status



Members of Congress have a significant decrease in their legislative productivity upon joining the Rules Committee. This effect is not just a product of less effective members being assigned to Rules, however—even when including member fixed effects such as in Model 2, the coefficient stays significantly negative. Notably, this effect is concentrated among majority party members of the committee, which makes sense as they have to do the vast majority of work in the committee, including drafting special rules[6].

Even if being on the Rules Committee and implementing majority party negative agenda control results in policy benefits for majority party members of the committee, specifically through protecting status quo policies that are close to the ideal points of majority party members, these benefits cannot be exclusive to Rules Committee members as they benefit all members of the majority party who receive net policy utility from

[6]Practically every special rule passed by the House is introduced by a majority party member of the Rules Committee. For example, all 131 special rules passed by the Republican-controlled House in the 114th Congress were introduced by Republican members of the committee.

negative agenda control (Jenkins and Monroe 2012). This means that members would individually be better off not being on the Rules Committee due to the opportunity costs of not serving on another, more productive, committee, even if many members of the majority party benefit from the agenda control imposed by the committee. This generates a collective action problem where members would benefit most from free-riding on the work of the Rules Committee.

This all raises the question—how do party leaders ensure the loyalty of the Rules Committee when the committee is so lacking in legislative and pork benefits for its members? I argue that there are two classes of complementary mechanisms that party leaders can lean on. First is the selection of loyal members to the committee. High-profile cases of disloyal Rules Committee behavior can be traced to maverick committee members that have a bone to pick with their party's leadership, including the conservative southern Democrats in the pre-reform Congress and the Freedom Caucus-aligned Republicans in the 118th Congress. Therefore, the first-order solution to keeping the Rules Committee in line is to appoint members loyal to the interests of the majority party and the interests of majority party leadership, filtering out any potential rebellions that could stem from non-ideologically aligned members.

The second is the distribution of individualized benefits to its members, specifically through future promotion to prestigious committees and access to the legislative agenda through the special rule process. These individualized benefits are a complementary mechanism to the selection of loyalist members. They solve the collective action problem by reducing the opportunity costs of serving on Rules relative to other committees, incentivizing members to serve on the committee and produce the collective good of majority party negative agenda control. I also argue that these benefits are increasingly distributed to Rules Committee members as the Rules Committee becomes increasingly indispensable to the continued dominance of the majority party and party leadership in the legislative process. I empirically analyze these two classes of mechanisms, ex-ante selection and ex-post distribution of individualized benefits, in turn.

3 Ex-Ante Selection of Loyalists

The composition of the House Rules Committee is critical in determining whether the committee stays loyal to the interests of party leadership. Party leaders must carefully select committee members who are loyal to party leadership and their party as a whole, as their interests are best served by being loyal servants of party leadership on the House Rules Committee instead of using their committee position to extract concessions on policy, pork, or internal power.

The 118th Congress is an example of what happens when non-loyal members are appointed to the Rules Committee. Then-Speaker Kevin McCarthy (R-CA) appointed three House Freedom Caucus-aligned members of the Republican conference[7] to the Rules Committee in exchange for votes for his candidacy for speakership, thus granting these far-right Republicans a voting majority in conjunction with the minority party Democrats on the committee (7 votes to 6). This resulted in Speaker McCarthy and his replacement, Speaker Johnson (R-LA), having to make policy concessions to either the far-right flank of his conference or moderate Democrats in order for bills to be passed through the Rules Committee. For example, a special rule providing for consideration of a bill to provide military aid to Taiwan, Ukraine and Israel was passed through the Rules Committee on a 9-3 vote in April 2024, receiving votes from the Democrats on the committee and passing in the face of opposition against the same three Freedom Caucus-aligned members of the Republican conference (Edmondson 2024). In several cases, such as the 2024 National Defense Authorization Act and stop-gap spending bills in the 118th Congress, Speakers McCarthy and Johnson have had to bypass the Rules Committee entirely and rely on Suspension of the Rules to pass legislation, requiring concessions to Democrats due to Suspension of the Rules' 2/3rds final passage vote threshold. As noted by Representative and Rules Committee member Teresa Leger Fernandez (D-NM), the use of suspension of the rules "...is a consequence of the bargain McCarthy made... It's because of Republican

[7] Chip Roy (R-TX), Ralph Norman (R-SC), and Thomas Massie (R-KY). Though Thomas Massie is not a House Freedom Caucus member himself, he has aligned himself with Freedom Caucus members on pivotal votes, including by opposing the re-election of Speaker Boehner in 2013 (Doherty 2013).

infighting that they cannot pass rules on the floor." (Feldman 2024) The appointment of these Freedom Caucus-aligned Republicans compromised the committee's usefulness as a tool for party leaders to advance their legislative agenda by requiring party leaders to make difficult compromises with ideologically distant groups of representatives, making it harder to balance policy congruence and legislative viability.

Most committee assignments in the House of Representatives are handled by each party's respective Steering and Policy committee, which is composed of party leadership, select committee chairs, party whips, and a rotating mix of other party members. However, appointments to the House Rules Committee are unique—the Speaker and the Minority Leader propose a list of members to serve on the committee at the start of each Congress, which then receives a typically uncontroversial vote by the party membership and then the chamber as a whole (Greene 2022). This gives party leaders much more control over the roster of the Rules Committee than other committees, partially contributing to the committee being viewed as the 'Speaker's Committee'.

I posit that party leaders use their appointment privileges for the Rules Committee to stack the committee with loyal members and exclude potentially disloyal members. This lowers the likelihood that the committee will attempt to use their position of power to extract concessions or attempt an open revolt against party leadership by filtering out the members that would, presumably, benefit most from those actions. I also posit that the appointment of loyalists, or at least non-disloyal members, is a necessary condition for ensuring committee loyalty.

Which members are most likely to be loyal agents? There are a few potential perspectives—first, party leaders could simply just appoint members whom most closely share their policy views. If the Rules Committee serves the interests of party leaders, it makes sense that appointing those most in agreement with the policy preferences of party leaders would minimize the likelihood of rebellion. Alternatively, party leaders, as agents of their party as a whole, may appoint members that are most closely aligned with the ideological median of their party. Several scholars have found evidence that the usage of restrictive rules, written by the Rules Committee, results in non-median outcomes biased

in favor of the median of the majority party (B. W. Marshall 2002, Monroe and Robinson 2008), hence it stands to reason that members closest to the ideological median of their party are most likely to be appointed.

Another perspective stems from the policy utility generated from the negative agenda control that the Rules Committee helps implement. By providing party leaders with the agenda control tools necessary to enact a majority party cartel (Sinclair 1994, Dion and Huber 1996, B. W. Marshall 2002, Monroe and Robinson 2008), Rules Committee members are helping to block out changes to status quo policies that the median of the majority party prefers to the counterfactual case of no agenda control where all policies converge upon the floor median.[8]. If one assumes that members who benefit from the negative agenda control imposed by the Rules Committee are less likely to revolt against party leadership, it stands to reason that moderate members of each party, specifically members in the majority party who are sufficiently close to the floor median that they receive policy disutility from the imposition of majority party negative agenda control, are less likely to be appointed to the Rules Committee as they are hurt by the Rules Committee's negative agenda control, at least on a strictly policy-utility basis.

To calculate the net policy utility that members receive from the imposition of majority party negative agenda control, I formally derive the utility functions of member x under majority party negative agenda control ($U_x MajPartyNAC$) and no agenda control ($U_x NoAC$) in a one-dimensional policy space $x \in X$ where M is the median member of the majority party, F is the median member of the entire House of Representatives, and q represents a status quo policy. I then integrate these utility functions over the space between F and $2M - F$, which represents the gridlock zone under majority party negative agenda control, and calculate the cut-point at which x would prefer majority party negative agenda control over no agenda control[9]. The utility functions and cutpoints are

[8]There are several works that take a different view of the role of restrictive rules on ideological outcomes of legislation (Krehbiel 1997, others) This theory is therefore conditional on the assumption that the Rules Committee at least partially contributes to negative agenda control benefiting the median of the majority party.

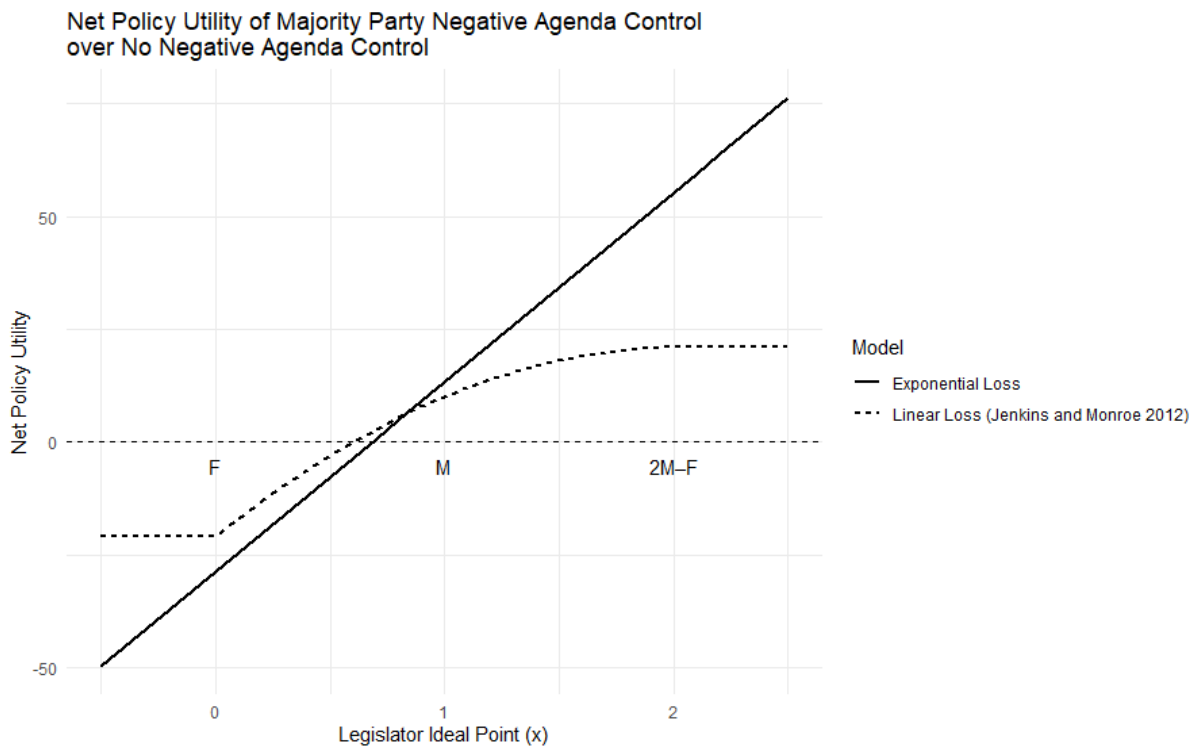
[9]I also utilize Jenkins and Monroe's definition of which members lose out on negative agenda control, which differs from my definition in that it uses linear loss instead of exponential loss (2012). The cut-point at which a member would prefer majority party negative agenda control is almost exactly the same, however. The results using this operationalization are in Appendix C.1

listed in Table 2, the cutpoints are charted in Figure 3, and the proof for the exponential loss cut-point is listed in Appendix B.

Table 2: Utility functions & cut-points for net policy utility

	Linear Loss (Jenkins and Monroe 2012)	Exponential Loss
$U_x MajPartyAC$	$\int_F^{2M-F} -\|x-q\|dq$	$\int_F^{2M-F} -(x-q)^2 dq$
$U_x NoAC$	$\int_F^{2M-F} -\|x-F\|dq$	$\int_F^{2M-F} -(x-F)^2 dq$
$U_x MajPartyAC \geq U_x NoAC$	$x \geq 0.6\|M-F\|$	$x \geq \frac{2M+F}{3}$

Figure 3: Net Policy Utility Chart where F=0 and M=1



I assess these predictions using data on committee assignments (Stewart III and Woon 2017), congressional election results (Jacobson and Algara 2024), and legislative effectiveness (Volden and Wiseman 2014) from the 96th to the 116th Congresses (1979 to 2021). I conduct a fixed effects regression analysis to tease out whether Rules Committee members are selected on the basis of their ideological alignment, either with their party leader or the median of their party, and/or on the basis of their net policy utility from the negative agenda control that the Rules Committee helps implement. I use the following

regression model and ordinary least squares estimation:

$$Y\text{Rules Member}_{xt} = \beta_1\text{Lagged Member Characteristics}_{xt-1} +$$
$$\beta_2\text{Member Characteristics}_{xt} + \alpha_x + \alpha_t + \epsilon_{xt}$$

where subscript x represents a member of the House of Representatives and subscript t represents a Congress. *Lagged Member Characteristics* include a member's Legislative Effectiveness Score (LES) at time $t-1$ and the key predictors of interest, that being ideological distance from the party median and the party leader at time $t-1$[10]. I operationalize these predictors using DW-Nominate scores (Poole and Rosenthal 1985). *Member Characteristics* include key control variables measured at time t, such as whether a member serves on multiple committees, whether a member is on a prestigious committee[11], whether a member was elected from a competitive district[12], as well as the member's seniority and whether they are a member of the majority party.

I then implement the same regression model with two key differences: first, β_1 is a lagged binary variable indicating whether a member is a 'net policy loser' in either the exponential loss or linear loss models of policy utility. In essence, this binary variable captures whether a member of the majority party prefers no agenda control over majority party negative agenda control, i.e. whether a member falls below the x-axis in Figure 3. Second, the sample is restricted to majority party members. The policy utility cut-off is calculated using the ideal points of majority party members, so minority party members would always be coded as net policy losers, even though they may potentially be a net policy winner in the event that their party becomes the majority party.

[10]The use of lagged predictor variables drawn from congressional activity in the previous term has the side effect of excluding freshmen members of the House of Representatives from the dataset.

[11]Appropriations, Ways and Means, and Energy and Commerce

[12]I operationalize a competitive district as one where the member won with 55% or less of the vote in their general election.

Table 3: Effect of member ideology on assignment to Rules (96th-116th Congresses)

	(1)	(2)	(3)	(4)	(5)	(6)
Party Median Distance$_{t-1}$	-0.077*	-0.068				
	(0.039)	(0.078)				
Party Leader Distance$_{t-1}$			-0.135***	-0.060		
			(0.037)	(0.056)		
Net Policy Loser$_{t-1}$					-0.025+	0.001
					(0.013)	(0.012)
Legislative Effectiveness$_{t-1}$	-0.010***	-0.000	-0.011***	-0.001	-0.011***	0.001
	(0.003)	(0.001)	(0.003)	(0.001)	(0.003)	(0.002)
On Multiple Committees	-0.071***	-0.014	-0.070***	-0.014	-0.093***	-0.016
	(0.017)	(0.010)	(0.017)	(0.010)	(0.024)	(0.011)
On Exclusive Committee	-0.083***	-0.039*	-0.083***	-0.039*	-0.096***	-0.062*
	(0.016)	(0.016)	(0.016)	(0.016)	(0.020)	(0.025)
Competitive District	-0.010	0.003	-0.007	0.003	-0.013	0.004
	(0.007)	(0.005)	(0.007)	(0.005)	(0.013)	(0.007)
Seniority	0.002+	0.000	0.002+	0.000	-0.002	-0.001
	(0.001)	(0.001)	(0.001)	(0.001)	(0.001)	(0.002)
Majority Party	0.029***	0.030***	0.030***	0.030***		
	(0.007)	(0.006)	(0.007)	(0.006)		
Committee Chair	0.009	-0.020*	0.007	-0.020*	0.033	-0.027*
	(0.019)	(0.009)	(0.019)	(0.009)	(0.024)	(0.013)
Observations	7345	7345	7345	7345	3379	3379
R^2	0.055	0.805	0.059	0.805	0.068	0.919
Congress Fixed Effects	✓	✓	✓	✓	✓	✓
Member Fixed Effects		✓		✓		✓

Note: +p<0.1; *p<0.05; **p<0.01; ***p<0.001
Standard errors are clustered by member.

As shown in models 1 and 3 in Table 3, members further away from the ideological median of their party and the ideology of their party leader at time $t-1$ are significantly less likely to be appointed to the Rules Committee. Model 3 shows that moving from the 10th percentile to the 90th percentile of ideological distance from a member's party leader correlates with a 3.4% decrease in the likelihood of being appointed to the Rules Committee. Likewise, model 5 shows that members who receive net policy dis-utility from the imposition of majority party negative agenda control are less likely to be appointed to the Rules Committee, reflecting party leaders' reluctance to appoint members whom might prefer no agenda control.

However, as models 2, 4, and 6 show, the significance of the coefficients on the predictors go away when member fixed effects are introduced. This implies that an unobservable and time-invariant variable correlated with ideological proximity to the party median and the party leader predicts appointment to the Rules Committee, likely a latent loyalty variable to the goals of the majority party or to party leadership.

One thing to note about models 5 and 6 is that the net policy utility model assumes that ideologically extreme members of the majority party would be the most loyal servants of the party's interests on the Rules Committee, as illustrated by Figure 3. The aforementioned example of the 118th Congress provides descriptive evidence that this is not always the case in real life, as the extremist Republican members appointed by Speaker McCarthy to the Rules Committee voted against special rules in conjunction with Democrats. This use of Rules Committee procedural power as a bargaining chip for policy concessions from party leadership is something that both extreme and moderate members of the majority party can engage in and is not modeled in a simple policy utility function. Therefore, the results are most congruent with a world where party leaders appoint loyalists close to the party median to the Rules Committee.

4 Ex-Post Distribution of Individualized Benefits

However, ex-ante selection of loyalists is not the only means through which party leaders can ensure the loyalty of the Rules Committee. I argue that, as the importance of

the Rules Committee to the functioning of the majority party cartel has increased at the exact same time the perceived prestige of the committee has decreased, party leaders are incentivized to go further beyond ex-ante selection of loyalists in ensuring the loyalty of the committee, lest they risk a potential backlash from its members. To compensate Rules members, party leaders can offer 'side-payments' in the form of individualized benefits, either during or after their service on the Rules Committee. In this section, I analyze two sets of ex-post individualized benefits that can be given to Rules Committee members: prestigious committee assignments and privileged consideration of members' own legislation through the special rule process.

4.1 Prestigious Committee Assignments

The House Rules Committee is not the only committee that party leaders have a vested interest in ensuring the loyalty of. Though the Rules Committee is unique in its procedural influence, other committees nonetheless have significant influence over the development of legislation and the distribution of pork-barrel benefits for members. Informational and distributive theories of legislative organization both echo the key point that the composition of committees reflect the interests that the committee system as a whole is meant to serve, as committees are essentially a mechanism to ensure that the House floor does not have a veto over the decisions over a certain subgroup of members with a particular vested interest in the policy domain of a given committee (Gilligan and Krehbiel 1987, Weingast and W. J. Marshall 1988). Therefore, the composition of the membership of these committees is critical in determining the policy outcomes of these committees. Though party leaders do not have the same degree of control over most committee assignments as they do assignments to the Rules Committee, observers and scholars have noted that the Speaker appoints the majority of members to the Steering and Policy Committees, at least for the Democratic Party (Ban, Moskowitz, and Snyder 2019), and that these committees, which are tasked with recommending committee assignments, are generally dominated by the interests of party leaders (Schuman 2020), hence party leaders having significant influence over committee assignments.

Likewise, certain committees are viewed as more prestigious than others by members of the House of Representatives. Committees focused on revenue and spending, such as Appropriations and Ways and Means, and committees with a broad policy jurisdiction, such as Energy and Commerce, provide significant legislative and pork benefits to members that can be used to achieve both their policy and re-election goals[13]. Assignments to these prestigious committees are highly coveted by members (Groseclose and Stewart 1998, Stewart III 2018), with Appropriations and Ways and Means alone comprising 34.7% of requested committee assignments from the 86th to the 103rd Congresses[14] (Frisch and Kelly 2004). The prestigious nature of these committees derives from their policy influence, which is the same reason that party leaders have a particular vested interest in who gets appointed to these committees.

I argue that party leaders, having both significant control over the distribution of a valuable benefit for members (prestigious committee assignments) and a vested interest in ensuring that the rosters of these prestigious committees stay loyal to the policy goals of their party, can essentially 'kill two birds with one stone' by rewarding Rules Committee members with appointments to prestigious committees. First, appointing members who have served on Rules can allow party leaders to screen out potentially disloyal or maverick members from service on key prestige committees. Not only are party loyalists disproportionately present on the Rules Committee, it is also easier for party leaders to filter out disloyal members from the Rules Committee than it is for other committees due to their appointment powers for the committee. For instance, Speaker Boehner (R-OH) removed two Republican members of the Rules Committee, Daniel Webster (R-FL) and Richard Nugent (R-FL), for mounting and supporting a challenge to Boehner's speakership bid in 2015 respectively (Sherman and Bresnahan 2015). Party leaders can thus be more certain that a Rules Committee member will be more likely to stay loyal to the party than a non Rules Committee member, all else held equal. Second, appointing members who have

[13]Some recent research has questioned whether seats on prestigious committees really grant members significant increases to their legislative effectiveness (Berry and Fowler 2018) or their ability to direct spending (Berry and Fowler 2016, though see Hammond and Rosenstiel 2020 for a methodological critique of the distributive politics literature).

[14]The data in the Frisch and Kelly article consists of the 86th to 90th and the 92nd to 103rd Congresses for Democrats, and the 86th to 101st Congresses for Republicans (2004).

served on Rules to prestigious committees incentivizes current Rules Committee members to stay loyal to the goals of the party cartel. If removal from the Rules Committee is the 'stick' that keeps the Rules Committee in line, the prospect of prestigious committee assignments is a convenient 'carrot' that members want and party leaders have control over, incentivizing members on the Rules Committee to toe the party line.

To test if members who have served on the Rules Committee are more likely to be appointed to prestigious committees, I utilize data on committee assignments, legislative effectiveness and ideological alignment from the 96th to 116th Congresses, subsetting the data to only include members first elected from the 96th Congress onward to minimize missing data concerns stemming from not having full committee assignment data before the 96th Congress. I implement a series of regression models with the following structure and least squares estimation:

$$Y\text{Prestige Committee}_{xt} = \beta_1\text{Cumulative Lagged Member Characteristics}_{xt-1} +$$
$$\beta_2\text{Lagged Member Characteristics}_{xt-1} + \beta_3\text{Member Characteristics}_{xt} + \beta_1\alpha_t + \alpha_x + \alpha_t + \epsilon_{xt}$$

where subscript x represents a member of the House of Representatives and subscript t represents a Congress. β_1 *Cumulative Lagged Member Characteristics* includes the main predictor variable of this analysis, that being a lagged cumulative indicator variable capturing whether member x has served on the Rules Committee at least once between time $t-1$ and the start of their tenure as a member of the House of Representatives. For instance, if member x is currently serving on the House Rules Committee for the first time, their value is 0, whereas if member x served on Rules two Congresses ago or is serving for their third term on Rules, their value is 1. This is an intentional choice to exclude instances where members simultaneously receive their first appointments to both Rules and a prestige committee at the same time, generating a conservative operationalization of which members have 'done their time' on the Rules Committee.

I also include a lagged cumulative indicator variable capturing whether member x has served on a prestige committee[15] at least once between time $t-1$ and the start of

[15]Prestige Committees are operationalized as Appropriations, Ways and Means, and Energy and Com-

their House tenure, controlling for instances where a member of a prestige committee joins Rules later on in their tenure. I include two models, one without member fixed effects and one with, to isolate whether the effect is actually being driven by Rules service or is being driven an unobserved confounder that varies across members but is invariant within members, such as loyalty. Finally, I include a third model with an interaction between β_1 and the time indicator α_t to capture if the treatment effect of ever being on Rules varies over the time period of my analysis. The regression results are presented in Table 4 and the over time marginal effects of being on Rules at time $t-1$ or before on being on a prestige committee at time t are presented in Figure 4.

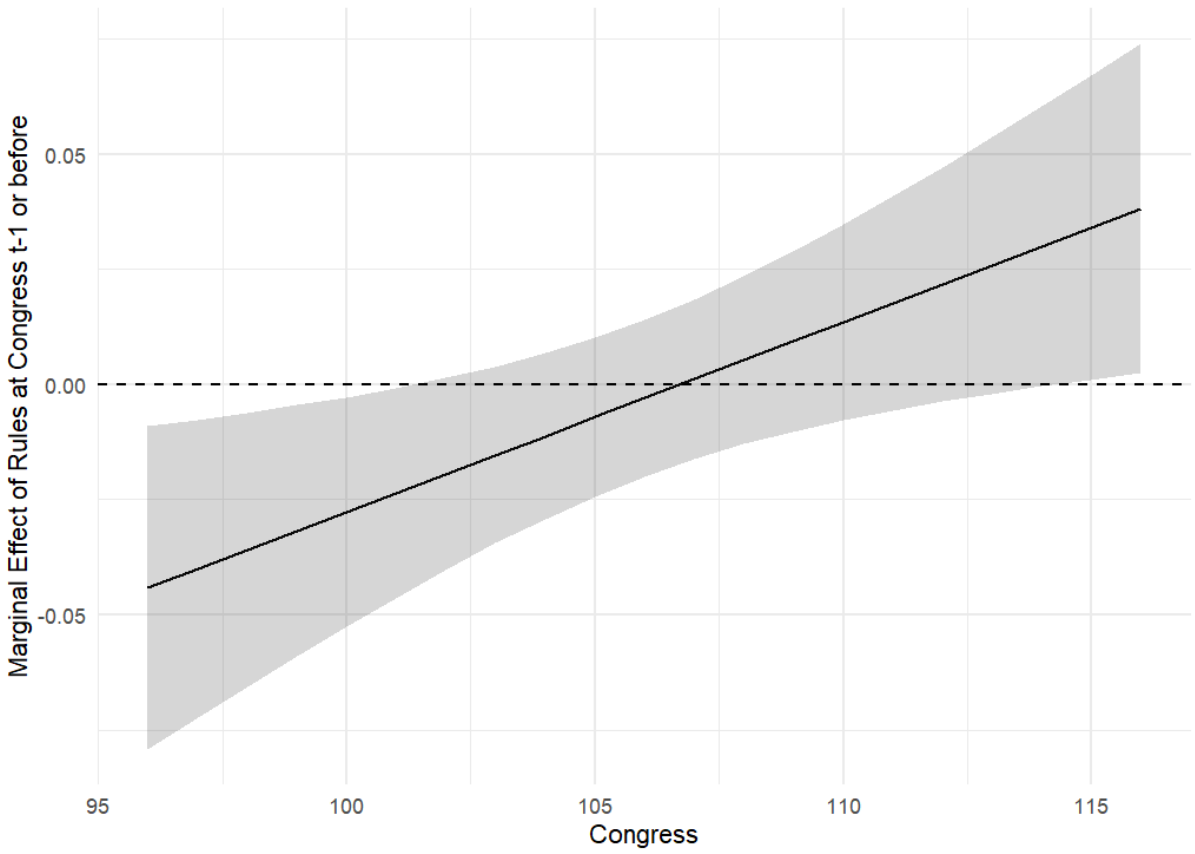
merce. These three committees are the top three most valuable non-Rules committees from the 92nd to 115th Congresses, as estimated using the Grosewart method of calculating committee value (Stewart III 2018).

Table 4: Effect of being on Rules on assignments to prestige committees (96th-116th Congresses)

	(1)	(2)	(3)
Rules$_{t-1}$ or before	0.005	0.010	-0.048*
	(0.006)	(0.008)	(0.019)
Rules$_{t-1}$ or before × Congress			0.004**
			(0.002)
Prestige$_{t-1}$ or before	0.963***	0.983***	0.983***
	(0.007)	(0.008)	(0.008)
Party Median Distance$_{t-1}$	0.024	-0.020	-0.027
	(0.066)	(0.128)	(0.128)
Party Leader Distance$_{t-1}$	-0.017	0.013	0.020
	(0.078)	(0.131)	(0.132)
Legislative Effectiveness$_{t-1}$	-0.002	-0.001	-0.001
	(0.003)	(0.002)	(0.002)
Seniority	-0.000	0.028	0.028
	(0.002)	(0.020)	(0.020)
Competitive District	-0.004	-0.004	-0.004
	(0.007)	(0.007)	(0.007)
Majority Party	0.014***	0.011**	0.012**
	(0.004)	(0.004)	(0.004)
Committee Chair	-0.043*	-0.036+	-0.037*
	(0.020)	(0.018)	(0.018)
Observations	5890	5890	5890
R^2	0.940	0.966	0.966
Congress Fixed Effects	✓	✓	✓
Member Fixed Effects		✓	✓

Note: +p<0.1; *p<0.05; **p<0.01; ***p<0.001
Standard errors are clustered by member.

Figure 4: Marginal Effect of being on Rules at time $t-1$ or before on being on a Prestige Committee at time t (96th-116th Congresses, model 3 in Table 4)



As shown in Table 4, models 1 and 2 do not show a significant effect of being on Rules on future assignments to prestige committees. However, model 3 does show a significant over-time increase in the likelihood of being assigned to a prestige committee as a function of past Rules Committee service. This over-time effect is further visualized in Figure 4, which shows that the effect of Rules service on being assigned to a prestige committee is increasing over time, starting as a significantly negative effect in the 96th-101st Congresses and ending as a significantly positive effect in the 115th and 116th Congresses.

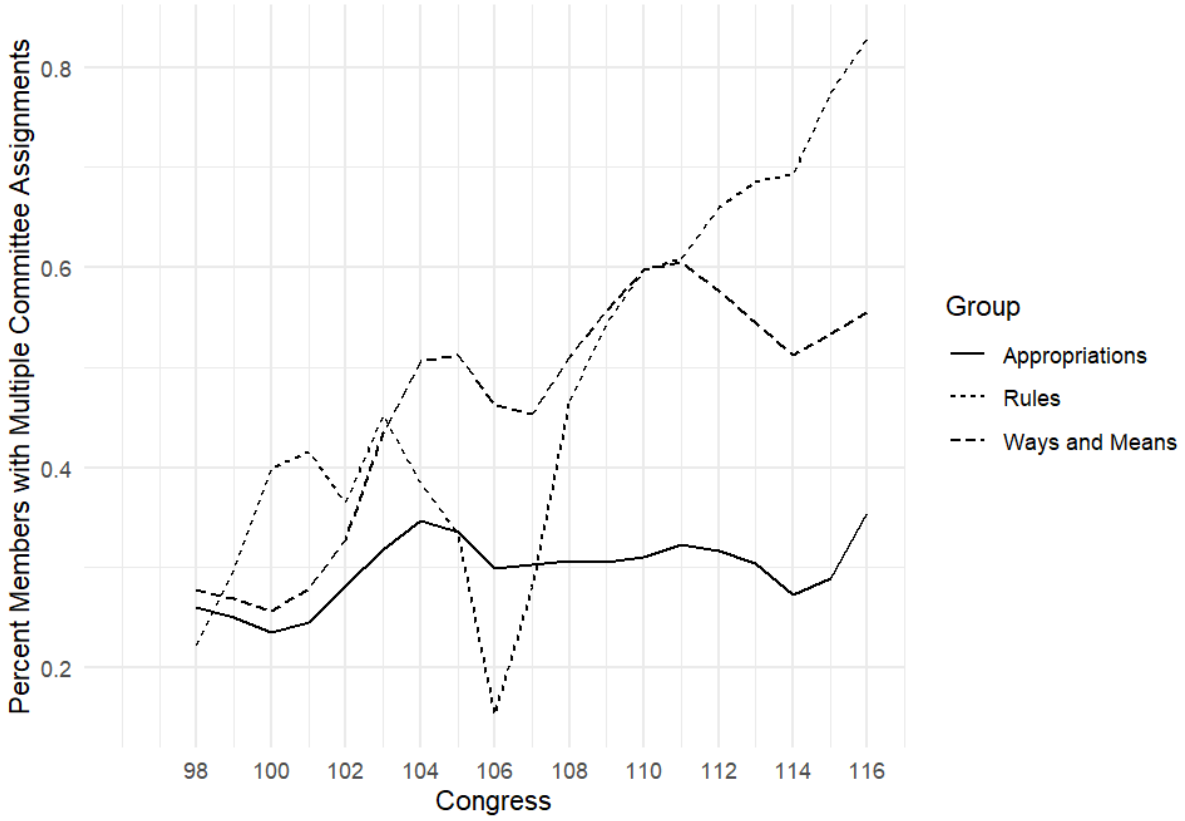
Given that the coefficient of Rules in models 1 and 2 is statistically insignificant and that the coefficients capturing party loyalty are insignificant in all models, it is difficult to conclude that party leaders are promoting Rules Committee members to prestige committees only because of their proven loyalty or that party leaders are prioritizing loyalty in prestige committee members in the same way that they do for the Rules Committee. However, the significant over-time increase in the marginal effect of Rules membership

on prestige committee assignments is congruent with the notion that Rules members are being increasingly 'bought off' over time for their loyal service on the committee as a way to minimize the risk of a committee rebellion when the importance of the committee to the centralized distribution of power is only increasing.

These results are all the more striking when considering that Appropriations, Ways and Means, Energy and Commerce[16] and Rules are formally, or informally, defined as 'exclusive' committees, i.e. committees where members are restricted to only serving on that one singular committee unless given a waiver (Greene 2022). This puts Rules members at a significant disadvantage compared to non-Rules members in attaining a spot on another prestige committee during their service, as they are forced to either seek an exclusivity waiver to serve on another prestige committee such as Ways and Means or be transferred out of Rules and onto a prestige committee. Figure 5 highlights the over-time increase in exclusivity violations (i.e. having more than one committee assignment while on an exclusive committee) among Rules members compared to members on Appropriations and Ways and Means, two prestigious committees that are also classified as exclusive. Rules members go from around 25% of their members having multiple committee assignments to over 80% having multiple committee assignments, an increase that outstrips members on both Appropriations and Ways and Means over the same time period.

[16]Energy and Commerce was first formally included as an exclusive committee in the Democratic Caucus rules beginning in the 104th Congress (Greene 2022).

Figure 5: Exclusivity Violations (Three Congress moving average) among Exclusive Committee Members (96th-116th Congresses)



4.2 Access to the Legislative Agenda through Special Rules

Another way that party leaders can 'compensate' Rules Committee members is to allow them to utilize the special rule process to privilege consideration of their own preferred legislation. For example, in exchange for shepherding through key legislation, a member on the Rules Committee may be rewarded by being allowed to consider one of their own bills through a special rule, expediting the bill's movement through the legislative process. This gives Rules Committee members the ability to extract some legislative benefits from their service on the committee, even though the Rules Committee rarely considers own-jurisdiction legislation outside of special rules. Importantly, the vast majority of bills considered under special rules are passed by the House of Representatives, meaning that consideration of one's legislation via the special rule process is nearly tantamount to bill passage. Much like with prestigious committee assignments, there is reason to believe that this access to the legislative agenda is a benefit that has been granted in

increasing quantity as the Rules Committee has become more crucial in supporting the party leader-centric distribution of power in the House.

To test if bills sponsored or cosponsored by majority party members of the Rules Committee are more likely to receive a special rule, I utilize data from the Congressional Bills Project (Adler and Wilkerson 2017-2018) on HR bills from the 96th to 114th Congresses. I filter out non-HR bills and private bills to focus my sample on bills that focus on substantive policy. I gathered data on bills considered under special rules from congress.gov by manually searching for bills attached to special rules that were passed by the floor of the House. I then downloaded bill cosponsorship data from congress.gov to assess which bills were cosponsored by at least one majority party member of the Rules Committee and which bills were cosponsored by at least one majority party leader[17]. I restrict my search to bills sponsored/cosponsored by majority party members of the Rules Committee because the committee exclusively considers special rules introduced by majority party members of the Rules Committee—for example, all 131 special rules passed by the Republican-controlled House in the 114th Congress were introduced by Republicans on the Rules Committee and the same is true for all 229 special rules passed by the Democratic-controlled House in the 96th Congress. Within the sample of 102966 HR bills in the regression analysis, majority party members of the Rules Committee introduced 1725 bills and 15963 bills were cosponsored by at least one majority party member of the Rules Committee.

I implement a series of regression models with the following structure and least squares estimation:

$$Y\text{Received Special Rule}_{bt} = \beta_1\text{Bill Sponsor Characteristics}_{bt} +$$
$$\beta_2\text{Bill Cosponsor Characteristics}_{bt} + \beta_3\text{Bill Characteristics}_{bt} + \beta_1\alpha_t + \beta_2\alpha_t + \alpha_p\alpha_t + \epsilon_{bt}$$

where subscript b represents a bill, subscript t represents a Congress, and $\alpha_p\alpha_t$ represents PAP major topic code x Congress interactive fixed effects[18]. My predictors of

[17] I look for bills cosponsored by the Speaker, the Majority Party Leader, and/or the Majority Party Whip.

[18] I use PAP major topic codes as a rough proxy for committee jurisdiction. Research has found that the

interest are indicator variables for if a bill was sponsored by a majority party member of the Rules Committee (falls under β_1) and if a bill was cosponsored by at least one majority party member of the Rules Committee (falls under β_2). I also interact these predictors with a Congress indicator α_t to assess if this access has changed over time. I also control for certain bill-level and sponsor-level characteristics that could confound the relationship between the predictors and the outcome variable, such as the number of cosponsors on a bill, whether a bill is a leadership priority bill (i.e. HR 1-10), whether a bill is cosponsored by a majority party leader, and the number of substantive bills introduced by a member in a given Congress. The results are presented below in Tables 5 and 6, with the marginal effects of the predictors on bills receiving special rules plotted in Figures 6 and 7.

use of special rules is partially dependent on the characteristics of the committee that the bill is referred to (Bendix 2016), so I use these interactive fixed effects to control for potential unmeasured confounding factors that happen to correlate with the specific configurations of committees at certain Congresses, such as a certain committee being chaired by a recalcitrant chair or a chair with a particularly close relationship with party leadership.

Table 5: Effect of Majority Rules Sponsorship on a Bill Receiving a Special Rule (96th-114th Congresses)

	(1)	(2)
Majority Rules Member Bill	-0.005	-0.020**
	(0.005)	(0.006)
Majority Rules Member Bill x Congress		0.001*
		(0.001)
Majority Leader Cosponsorship	0.068***	0.068***
	(0.007)	(0.007)
# of Cosponsors	0.000***	0.000***
	(0.000)	(0.000)
Leader Bill (H.R. 1-10)	0.437***	0.437***
	(0.044)	(0.044)
Chair of Referred Committee	0.100***	0.100***
	(0.010)	(0.010)
log(Cumulative House Service+1)	0.010***	0.010***
	(0.001)	(0.001)
# Substantive Bills Introduced	-0.000***	-0.000***
	(0.000)	(0.000)
Majority Party Ideological Distance	-0.036***	-0.036***
	(0.002)	(0.002)
Observations	102996	102996
R^2	0.077	0.077
Congress x PAP Topic Fixed Effects	✓	✓

Note: +p<0.1; *p<0.05; **p<0.01; ***p<0.001
Standard errors are clustered by member.

Figure 6: Marginal Effect of Majority Party Rules Sponsorship on a Bill Receiving a Special Rule (96th-114th Congresses, model 2 in Table 5)

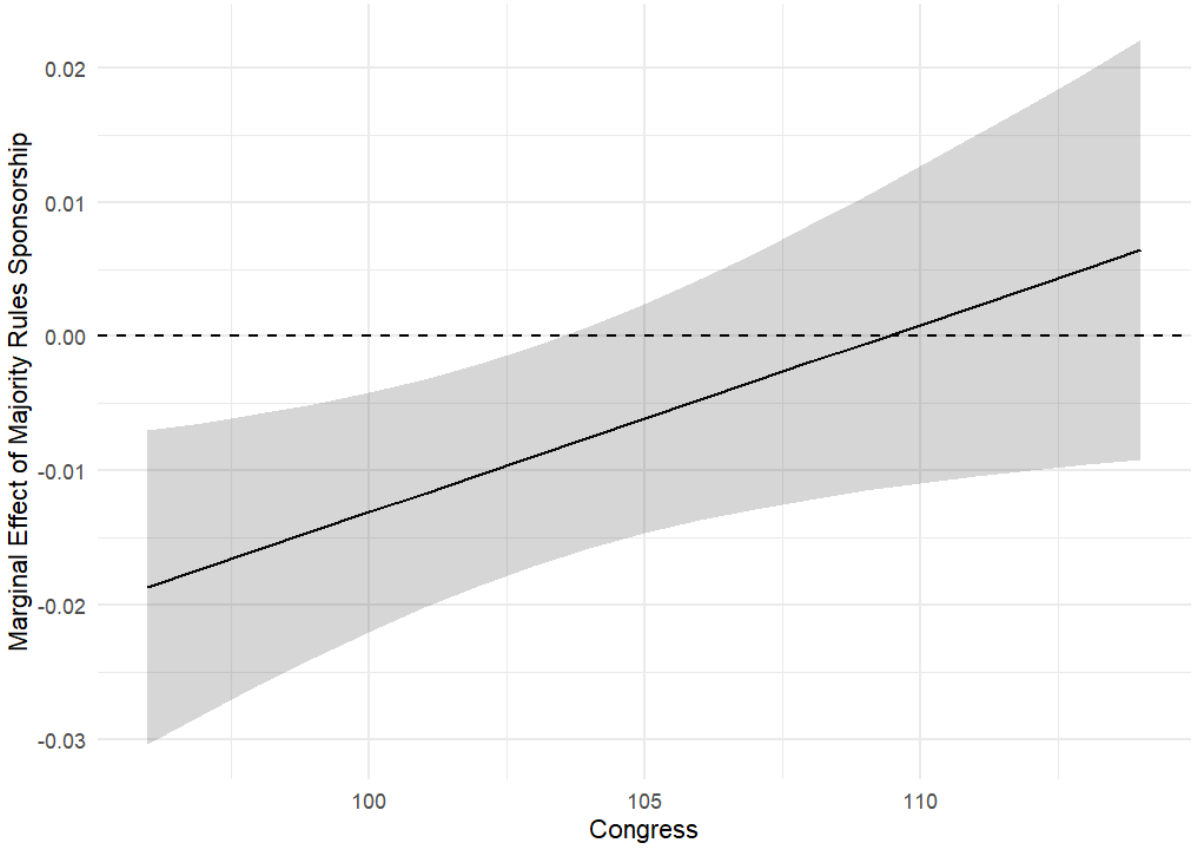
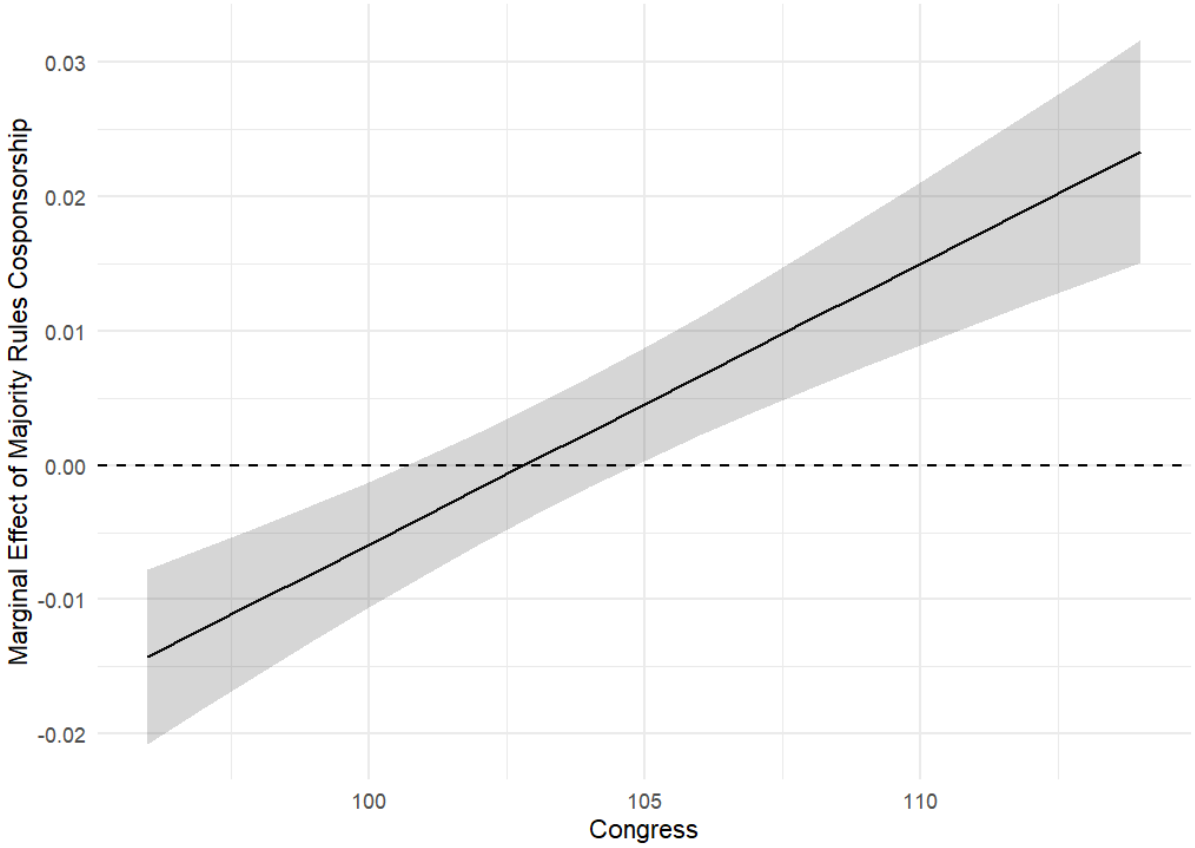


Table 6: Effect of Majority Rules Cosponsorship on a Bill Receiving a Special Rule (96th-114th Congresses)

	(1)	(2)	(3)	(4)	(5)	(6)
Majority Rules Cosponsorship	0.005*	-0.016***	0.005+	-0.021***	0.002	0.002
	(0.002)	(0.004)	(0.003)	(0.005)	(0.001)	(0.002)
Majority Rules Cosponsorship x Congress		0.002***		0.002***		-0.000
		(0.000)		(0.000)		(0.000)
Majority Leader Cosponsorship	0.068***	0.069***	0.067***	0.068***	0.034*	0.034*
	(0.007)	(0.007)	(0.007)	(0.007)	(0.016)	(0.016)
# of Cosponsors	0.000***	0.000***	0.000***	0.000***	0.000	0.000
	(0.000)	(0.000)	(0.000)	(0.000)	(0.000)	(0.000)
Leader Bill (H.R. 1-10)	0.439***	0.438***	0.448***	0.447***	-0.000	-0.000
	(0.044)	(0.044)	(0.045)	(0.045)	(0.000)	(0.000)
Chair of Referred Committee	0.099***	0.099***	0.095***	0.095***	-0.000	-0.000
	(0.011)	(0.011)	(0.010)	(0.010)	(0.000)	(0.000)
log(Cumulative House Service+1)	0.007***	0.008***	0.014***	0.014***	0.000	0.000
	(0.001)	(0.001)	(0.002)	(0.002)	(0.000)	(0.000)
Majority Party Ideological Distance	-0.033***	-0.031***	-0.062***	-0.063***	-0.003**	-0.003**
	(0.006)	(0.006)	(0.015)	(0.015)	(0.001)	(0.001)
Majority Party Sponsor	0.002	0.002				
	(0.004)	(0.004)				
Observations	102996	102996	62755	62755	40241	40241
R^2	0.077	0.077	0.073	0.074	0.021	0.021
Sample of HR Bills	All	All	Majority	Majority	Minority	Minority
Congress x PAP Topic Fixed Effects	✓	✓	✓	✓	✓	✓

Note: +p<0.1; *p<0.05; **p<0.01; ***p<0.001
Standard errors are clustered by member.

Figure 7: Marginal Effect of Majority Party Rules Cosponsorship on a Bill Receiving a Special Rule (96th-114th Congresses, model 2 in Table 6)



As shown in Figure 6 and model 2 of Table 5, the effect of a bill being sponsored by a majority party member of the Rules Committee on a bill receiving a special rule is increasing over time, going from a statistically negative effect in the 96th Congress to a null effect in the 114th Congress. This means that, over time, Rules Committee members have received more access to the legislative agenda for their own legislation, though it is worth noting that their access, at least for their own sponsored legislation, is not statistically higher than an average bill in the House of Representatives.

In Figure 7 and model 2 of Table 6, it is shown that bills cosponsored by majority party members of the Rules Committee are significantly more likely to receive a special rule, both in general as shown in model 1 and over time as shown in model 2. In model 2, the effect goes from significantly negative to significantly positive over time, with the coefficient at the 114th Congress being 0.023. Considering that the baseline probability in the sample of a bill receiving a special rule is 2.2%, this represents a significant increase in

the probability of a bill receiving a special rule. Models 4 and 6 in Table 6 show that the effect is being driven by bills introduced by majority party members, further bolstered by the fact that only 35 of the 2226 bills receiving a special rule in the sample were introduced by minority party members. This indicates that party leaders' accommodation of the legislative priorities of Rules members over time is conditioned on the legislation also pushing forward the legislative goals of majority party members.

To validate the mechanism of party leaders granting increased discretion to the Rules Committee over which bills receive special rules and rule out the alternative explanation that Rules Committee members have been more successful in accessing the legislative agenda over time on their own merits instead of through increased discretion from party leaders, I conduct an ancillary analysis using data on bills considered under suspension of the rules from Bussing (2021). This analysis replicates the exact same empirical models in Tables 5 and 6 except with a binary outcome variable indicating whether a bill was considered under suspension of the rules or not. The results show that majority party rules sponsorship and cosponsorship are correlated with a decreased likelihood of a bill being considered under suspension of the rules, with no significant over-time changes save for the case of bills introduced by minority party members outside of the Rules Committee. The empirical results are in Appendix C.3.

5 Discussion

The results of the paper indicate that party leaders are sensitive to the monumental importance of the House Rules Committee to their legislative success and tailor their appointments and distribution of benefits to the committee to ensure the committee's loyalty and reliability as an agent of majority party leadership. Party leaders disproportionately appoint ideological allies to the committee, minimizing the likelihood of maverick members using the committee as a bargaining chip for policy concessions. Though this approach has mostly worked in keeping the committee loyal, party leaders have complimented this approach by increasingly distributing individualized benefits over time as the committee's importance to the current centralized distribution of power has increased.

The distribution of benefits solves a free riding problem generated by the Rules Committee's role in generating a public good for majority party members, that being majority party negative agenda control, while lacking in policy and pork benefits that incentivize members to actually invest in the provision of this public good.

This paper presents a nuanced picture of the power, importance, and prestige of the Rules Committee. The committee remains highly important to the functioning of the majority party dominated legislative process, with this importance only increasing over time as special rules are used in more creative ways to preserve compromises and limit mobilization against legislation in an increasingly polarized and divided House of Representatives. However, service on the committee is primarily spent on maintaining negative agenda control through the drafting and consideration of special rules, with few opportunities for legislative development or procurement of federal spending for one's district. This has driven members to flee the Rules Committee in favor of more prestigious committees, with mean committee seniority declining precipitously in the post-Republican Revolution era.

However, this paper shows that service on the Rules Committee can make members more likely to achieve prestigious committee assignments, particularly in recent Congresses where exclusivity violations have become more common. The low present value of service on the Rules Committee is offset by the prospect of being fast-tracked to a powerful committee spot, incentivizing members to serve on the Rules Committee by offsetting the opportunity costs members endure when choosing to serve on a committee with few legislative and pork benefits. One of the common variables used to calculate committee prestige are transfers off of committees and mean committee seniority, and this finding suggests that the very factors used to empirically measure the declining prestige of the Rules Committee are also capturing one of the hidden benefits to Rules Committee service, that being the future prospect of placements on prestigious committees. More work needs to be done to analyze the potential of a committee pathway of sorts, but the results suggest that party leaders are responsive to members' desires for powerful committee assignments and utilize this as an incentive for members to serve on the Rules Committee

and contribute to the centralization of power in the hands of majority party leadership.

Likewise, the empirical finding that majority party Rules Committee members can push for preferred legislation through the special rule process, particularly in recent Congresses, suggests that the Rules Committee is not strictly a puppet of majority party leadership. The independent legislative influence of Rules Committee members, at least compared to the average member of Congress, is limited to legislation sponsored by majority party members and is not consistently significant over the time period in the empirical analyses, suggesting that this independent legislative influence is used moreso to the individualistic legislative benefit of the committee's majority party members rather than as a tool for broadly shaping the legislative agenda like in the textbook Congress era. This independent legislative influence, at least within the timespan of the study, is not in competition with the influence and goals of majority party leadership, even if it is granted as an incentive to keep members on the committee.

This paper also highlights a potential complementarity between the control of committee rosters and the distribution of benefits as mechanisms for party leaders exerting influence over committees, not just for the Rules Committee but also for other committees as well. Party leaders can utilize their influence over committee rosters to both selectively reward members with their preferred committee positions and exclude maverick members from levers of power. However, prestigious committee positions are a limited resource and not every member can be properly rewarded with their most preferred committee assignments. Other individualized benefits controlled by party leaders, such as access to the legislative agenda (Bussing 2021), campaign contributions (Jenkins and Monroe 2012) and consideration of amendments on structured rules (Michael S. Lynch, Madonna, and Roberts 2016), can be selectively distributed by party leaders to further incentivize members to support the majority party cartel. Party leaders can supplement the distribution of the inherently scarce resource of committee assignments with other benefits targeting the electoral and legislative interests of members to achieve the same goal of buying off members' support for the majority party cartel, though more research can be done to further demonstrate this complementarity.

Reliance on the distribution of these individual benefits is also a potential weakness for the majority party cartel and party leaders. By centralizing policy-making powers in their own hands and buying support for this centralized distribution of power, party leaders create a focal point of accountability in the chamber. If party leaders either fail to implement their legislative agenda or fail to distribute these benefits to their rank and file members, particularly those whose support is critical for the functioning of the majority party cartel such as moderate majority party members and Rules Committee members, they have limited ability to blame-shift to other powerful actors in the chamber, such as committee chairs, making it easier for members to credibly point blame against party leadership and mobilize against them if their needs are not met. The centralization of power is a double edged sword for party leaders—their power can give them the influence to shape the legislative agenda, even at the exclusion of committee chairs and the rank-and-file, but it also makes them more vulnerable to intra-party revolts, as exemplified by the recent cases of Republican dysfunction under Speakers Boehner, Ryan, McCarthy and Johnson.

In sum, the findings of the paper, combined with the recent legislative gridlock stemming from the appointment of far-right Republicans to the Rules Committee in the 118th Congress, highlight that the loyalty of the Rules Committee to the interests of party leaders is not an inevitability. This loyalty must be constructed through careful selection of loyalists and the service that the committee provides must be incentivized through selective distribution of individualized benefits without making the committee too independently powerful. Though the Rules Committee is a special case due to its distinctive role and its unique selection procedures, the careful balancing act that party leaders must play when selecting members for the Rules Committee and distributing benefits to these members is also happening with other committees and with the rank-and-file as a whole. The centralization of power in the hands of party leadership in the House is conditional on the support of the rank-and-file members that are being disempowered from this centralization, so party leaders must ensure that members' decreased policy influence is being shored up by other side-payments in the purview of party leadership.

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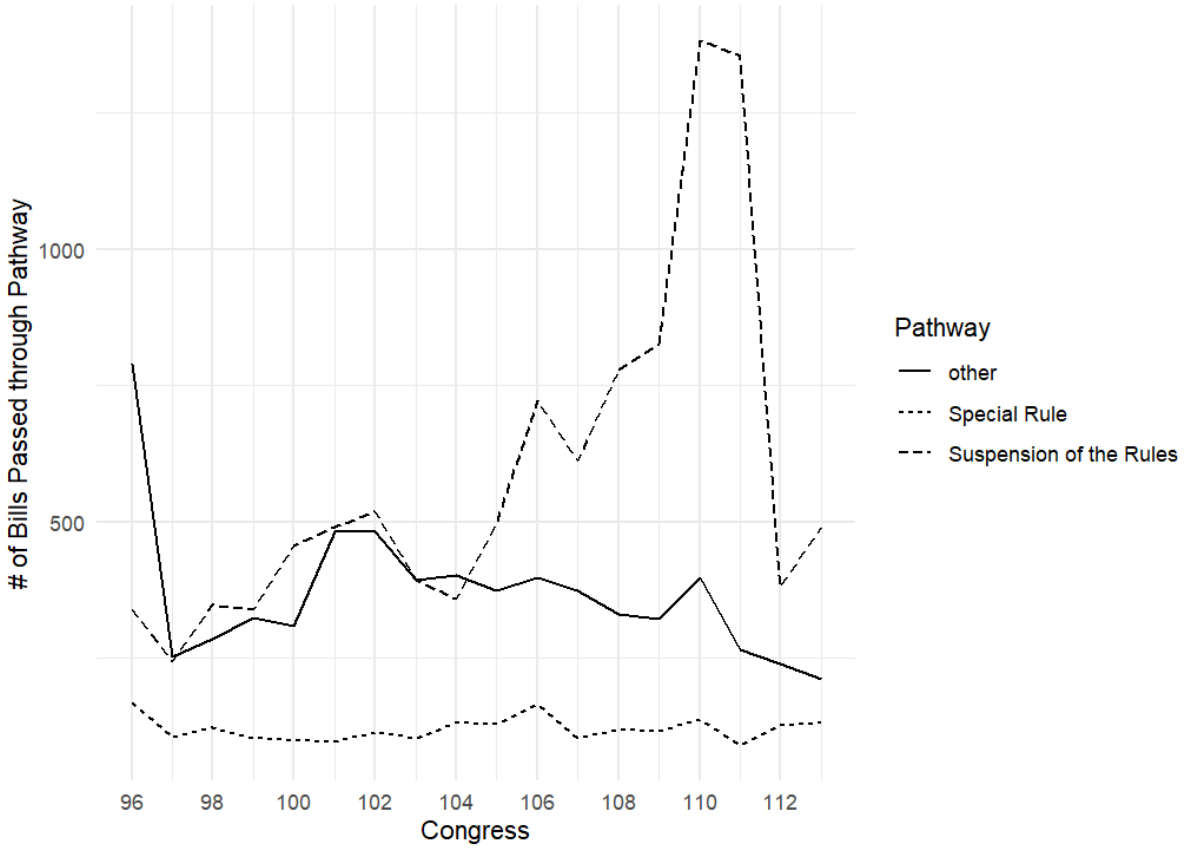
A Pathways for House Legislation

Figure 8: Pathways through the legislative process for legislation that passed the House (96th-113th Congresses)



B Proofs

Notation. Let x refer to the ideal point of a member of the House of Representatives on a one dimensional policy space (definition). Likewise, let F refer to the floor median's ideal point and M refer to the majority party median's ideal point. Let q refer to a status quo policy point in policy space.

$$U_x MajPartyNAC \geq U_x NoAC$$
$$\int_F^{2M-F} -(x-q)^2 dq \geq \int_F^{2M-F} -(x-F)^2 dq$$

The proof proceeds as follows: First, I integrate the respective utility functions for x with respect to q. Then, I solve for the inequality to generate the cutpoint at which x would prefer majority party negative agenda control ($U_x MajPartyNAC$) over no agenda control ($U_x NoAC$).

$$\begin{aligned}
U_x NoAC &= \int_F^{2M-F} -(x-F)^2 dq \\
&= -\int_F^{2M-F} (x-F)^2 dq \\
&= -\int_F^{2M-F} (x^2 - 2Fx + F^2) dq \\
&= -[x^2 q - 2Fxq + F^2 q]_F^{2M-F} \\
&= -q[x^2 - 2Fx + F^2]_F^{2M-F} \\
&= -2M + F(x^2 - 2Fx + F^2) + F(x^2 - 2Fx + F^2) \\
&= -2Mx^2 + 4FMx - 2F^2 M + 2Fx^2 - 4F^2 x + 2F^3
\end{aligned}$$

$$
\begin{aligned}
U_x MajPartyNAC &= \int_F^{2M-F} -(x-q)^2 dq \\
&= -\int_F^{2M-F} (x-q)^2 dq \\
&= -\int_F^{2M-F} (x^2 - 2qx + q^2) dq \\
&= -[qx^2 - q^2 x + \frac{1}{3}q^3]_F^{2M-F} \\
&= -[(2M-F)x^2 - (2M-F)^2 x + \frac{1}{3}(2M-F)^3] + [Fx^2 - F^2 x + \frac{1}{3}F^3] \\
&= -2Mx^2 + 2Fx^2 + 4M^2 x - 4FMx + \frac{2}{3}F^3 - 2F^2 M + 4FM^2 - \frac{8}{3}M^3
\end{aligned}
$$

$$
\begin{aligned}
U_x MajPartyNAC &\geq U_x NoAC \\
4M^2 x - 4FMx + \frac{2}{3}F^3 + 4FM^2 - \frac{8}{3}M^3 &\geq 4FMx - 4F^2 x + 2F^3 \\
4M^2 x - 8FMx + 4F^2 x &\geq \frac{4}{3}F^3 - 4FM^2 + \frac{8}{3}M^3 \\
x(4M^2 - 8FM + 4F^2) &\geq \frac{4}{3}F^3 - 4FM^2 + \frac{8}{3}M^3 \\
x &\geq \frac{\frac{4}{3}F^3 - 4FM^2 + \frac{8}{3}M^3}{4M^2 - 8FM + 4F^2} \\
x &\geq \frac{\frac{4(F^3 - 3FM^2 + 2M^3)}{3}}{4M^2 - 8FM + 4F^2} \\
x &\geq \frac{4(F^3 - 3FM^2 + 2M^3)}{3 * 4(M^2 - 2FM + F^2)} \\
x &\geq \frac{F^3 - 3FM^2 + 2M^3}{3(M^2 - 2FM + F^2)} \\
x &\geq \frac{1}{3}\frac{F^3 - 3FM^2 + 2M^3}{M^2 - 2FM + F^2} \\
x &\geq \frac{1}{3}\frac{(M-F)^2(2M+F)}{(M-F)^2} \\
x &\geq \frac{1}{3}2M + F \\
x &\geq \frac{2M+F}{3} \square
\end{aligned}
$$

C Alternative Empirical Models

C.1 Linear Net Policy Utility on Majority Party Rules Committee Assignments

In this section, I replicate the analysis in models 5 and 6 of Table 3 using the cutpoint for which members are 'net policy losers' from Jenkins and Monroe (2012) listed in Table 2. This cutpoint is generated from a linear loss utility function $-|x-p|$ where x represents the ideal point of a legislator and p represents an adopted policy. As depicted in Figure 3, the cutpoint is very similar to the cutpoint generated when using an exponential loss function like in the main analysis. Therefore, the results presented below in Table 7 are almost identical to models 5 and 6 of Table 3 in the main text.

Table 7: Effect of member ideology on majority party assignments to Rules (96th-116th Congresses)

	(1)	(2)
Net Policy Loser$_{t-1}$	-0.024+	-0.001
	(0.013)	(0.016)
Legislative Effectiveness$_{t-1}$	-0.011***	0.001
	(0.003)	(0.002)
On Multiple Committees	-0.093***	-0.016
	(0.024)	(0.011)
On Exclusive Committee	-0.096***	-0.062*
	(0.020)	(0.025)
Competitive District	-0.013	0.004
	(0.013)	(0.007)
Seniority	-0.002	-0.001
	(0.001)	(0.002)
Committee Chair	0.033	-0.027*
	(0.024)	(0.013)
Observations	3379	3379
R^2	0.068	0.919
Congress Fixed Effects	✓	✓
Member Fixed Effects		✓
Note:	+p<0.1; *p<0.05; **p<0.01; ***p<0.001	
	Standard errors are clustered by member.	

C.2 Alternative Specification of Effect of Rules on Prestige Committee Assignments

Table 8: Effect of being on Rules on assignments to prestige committees with Seniority Fixed Effects (96th-116th Congresses)

	(1)	(2)	(3)
Rules$_{t-1}$ or before	0.005	0.013	-0.039*
	(0.006)	(0.008)	(0.020)
Rules$_{t-1}$ or before × Congress			0.004*
			(0.002)
Prestige$_{t-1}$ or before	0.962***	0.979***	0.978***
	(0.007)	(0.008)	(0.008)
Party Median Distance $_{t-1}$	0.041	-0.011	-0.018
	(0.067)	(0.126)	(0.127)
Party Leader Distance$_{t-1}$	-0.055	0.014	0.020
	(0.082)	(0.123)	(0.124)
Net Policy Loser$_{t-1}$	0.016**	0.026***	0.026***
	(0.005)	(0.007)	(0.007)
Legislative Effectiveness$_{t-1}$	-0.001	0.001	0.001
	(0.003)	(0.002)	(0.002)
Competitive District	-0.003	-0.003	-0.004
	(0.007)	(0.007)	(0.007)
Majority Party	0.020***	0.018***	0.018***
	(0.005)	(0.005)	(0.005)
Committee Chair	-0.044*	-0.036*	-0.037*
	(0.020)	(0.018)	(0.018)
Observations	5890	5890	5890
R^2	0.940	0.966	0.966
Congress Fixed Effects	✓	✓	✓
Seniority Fixed Effects	✓	✓	✓
Member Fixed Effects		✓	✓

Note: +p<0.1; *p<0.05; **p<0.01; ***p<0.001
Standard errors are clustered by member.

C.3 Suspension of the Rules Alternative Specification

In this section, I replicate the analysis in Tables 5 and 6 with the outcome variable being if a bill was considered under Suspension of the Rules, another common mechanism for bringing up bills on the House floor that has a 2/3rds final vote passage threshold. Bussing, in his paper examining usage of suspension of the rules, finds that the Speaker uses suspension to control the content of the legislative agenda, positing that placing bills on the suspension agenda could be used as an individualized benefit for members that can be distributed by majority party leadership (2021). Importantly, unlike special rules, the Rules Committee does not have jurisdiction over suspension measures, with suspension being controlled by the Speaker of the House.

I posit that suspension of the rules can act as a substitute for special rules because of their common purpose—shaping the agenda of bills to be considered on the floor of the House. Insofar as majority party Rules Committee members can use special rules to privilege consideration of their preferred legislation at the discretion of majority party leadership, I posit that the Speaker *will not* use suspension of the rules to disproportionately consider sponsored and cosponsored legislation by majority party Rules Committee members. I utilize data on bills considered under suspension of the rules from the 96th to 113th Congresses from Bussing (2021) to replicate the empirical analyses in Tables 5 and 6. The results are mostly consistent with the prediction that suspension isn't used to prioritize the policy goals of majority party rules committee members and validate the mechanism of increasing discretion over special rules being granted by party leaders to majority party Rules Committee members over time.

Table 9: Effect of Majority Rules Sponsorship on a Bill Being Considered via Suspension of the Rules (96th-113th Congresses)

	(1)	(2)
Majority Rules Member Bill	-0.033***	-0.029**
	(0.007)	(0.011)
Majority Rules Member Bill x Congress		-0.000
		(0.001)
Majority Leader Cosponsorship	0.013+	0.013+
	(0.007)	(0.007)
# of Cosponsors	0.000***	0.000***
	(0.000)	(0.000)
Leader Bill (H.R. 1-10)	-0.093***	-0.093***
	(0.020)	(0.020)
Chair of Referred Committee	0.154***	0.154***
	(0.015)	(0.015)
log(Cumulative House Service+1)	0.007***	0.007***
	(0.002)	(0.002)
# Substantive Bills Introduced	-0.000***	-0.000***
	(0.000)	(0.000)
Majority Party Ideological Distance	-0.072***	-0.072***
	(0.004)	(0.004)
Observations	96897	96897
R^2	0.070	0.070
Congress x PAP Topic Fixed Effects	✓	✓
Note:	+p<0.1; *p<0.05; **p<0.01; ***p<0.001	
	Standard errors are clustered by member.	

Table 10: Effect of Majority Rules Cosponsorship on a Bill Being Considered via Suspension of the Rules (96th-113th Congresses)

	(1)	(2)	(3)	(4)	(5)	(6)
Majority Rules Cosponsorship	-0.013***	-0.017**	-0.025***	-0.028***	0.020***	0.001
	(0.003)	(0.006)	(0.004)	(0.007)	(0.005)	(0.009)
Majority Rules Cosponsorship x Congress		0.000		0.000		0.002*
		(0.001)		(0.001)		(0.001)
Majority Leader Cosponsorship	0.015*	0.015*	0.001	0.001	0.097***	0.099***
	(0.007)	(0.007)	(0.008)	(0.008)	(0.027)	(0.027)
# of Cosponsors	0.000***	0.000***	0.001***	0.001***	0.000	0.000
	(0.000)	(0.000)	(0.000)	(0.000)	(0.000)	(0.000)
Leader Bill (H.R. 1-10)	-0.091***	-0.091***	-0.095***	-0.095***	-0.014+	-0.013+
	(0.020)	(0.020)	(0.021)	(0.021)	(0.007)	(0.007)
Chair of Referred Committee	0.152***	0.152***	0.151***	0.151***	0.022***	0.022***
	(0.015)	(0.015)	(0.015)	(0.015)	(0.005)	(0.005)
log(Cumulative House Service+1)	0.004*	0.004*	0.005+	0.005+	0.002	0.001
	(0.002)	(0.002)	(0.003)	(0.003)	(0.001)	(0.001)
Majority Party Ideological Distance	-0.031***	-0.031***	-0.012	-0.012	-0.025***	-0.025***
	(0.009)	(0.009)	(0.022)	(0.022)	(0.006)	(0.006)
Majority Party Sponsor	0.031***	0.031***				
	(0.007)	(0.007)				
Observations	96897	96897	59443	59443	37454	37454
R^2	0.074	0.074	0.064	0.064	0.073	0.073
Sample of HR Bills	All	All	Majority	Majority	Minority	Minority
Congress x PAP Topic Fixed Effects	✓	✓	✓	✓	✓	✓

Note: +p<0.1; *p<0.05; **p<0.01; ***p<0.001
Standard errors are clustered by member.